

(D1). However, the board identified only one difference with respect to D1, whereas the examining division had identified two differences. As a result, the board defined an objective technical problem which was not as broad as the one defined by the examining division. But the board confirmed the examining division's assessment that the person skilled in the art would implement the teaching of D2 in the method known from D1. The board was therefore not convinced that the arguments set out in its preliminary opinion differed from the arguments set out in the decision under appeal to such an extent that they presented a whole new line of reasoning. Hence, the board saw no exceptional circumstances which would justify admitting the auxiliary request into the proceedings.

Similarly, in T 2279/16 the combination of documents on which the board based its inventive-step objection in its preliminary opinion was exactly the same as the one which had led to the refusal of the application, and hence this was not a new objection from the board (even if the board's reasoning differed in certain details). The board saw no exceptional circumstances.

See also the following cases, where, in the board's view, its preliminary opinion did not raise a new objection which could have justified the filing of new requests: T 14/20 (no new line of argument in communication under Art. 15(1) RPBA 2020, as the examining division's assessment already based on the same understanding of the features and definitions at issue), T 1080/15 (objection raised by the board was a mere development of the objection originally raised by the examining division), T 597/16 (board's observations consistent with the decision under appeal; amendment unrelated to board's observation on clarity), T 2486/16 (board, while departing in some respects from the reasoning of the examining division on inventive step, reached the same conclusion), T 1294/16 (board cited D7 as evidence that an argument of the examining division was based on common general knowledge, but exceptional circumstances acknowledged for other reasons; see chapter V.A.4.5.5j)), T 167/17 (board merely explained, in detail and by highlighting all relevant aspects, why it was of the preliminary opinion that the examining division had not erred in finding that the main request did not meet the requirements of Art. 76(1) EPC).

- c) Preliminary opinion of the board containing objections or arguments that were already part of the proceedings

In T 1187/16 the board held that, where all objections addressed in a board's communication had already been raised earlier on in the proceedings, the communication could not be regarded as creating exceptional circumstances within the meaning of Art. 13(2) RPBA 2020. The objections in this case had already been set out in detail, in particular in the reply filed by the respondent (opponent). The board thus concluded that the appellant had already had ample opportunity before notification of the summons to oral proceedings to respond to the existing objections by filing precautionary auxiliary requests. Considerations of procedural economy and the fact that the appellant had filed the auxiliary request more than one month before the oral proceedings were irrelevant in such circumstances.

Along similar lines, the board in T.1328/18 (citing T.2271/18) noted that the unfavourable preliminary opinion, which contained objections already raised in the opposition phase, did not qualify as an exceptional circumstance.

In T.2775/17 the respondent argued that it had only been on reading the communication with the board's preliminary opinion that it had been able to understand the tenor of the objections to its auxiliary request 2. The board rejected this argument, finding that its communication had not introduced any new aspect.

In T.1891/16 the clarity objection raised in the board's communication to claim 1 of the fourth auxiliary request had been explicitly submitted in the opponent's reply only in relation to claim 1 of the first auxiliary request. However, the same contested feature was also present, unchanged, in the fourth request. Since, in the board's view, this was readily apparent to the patent proprietor, it could have filed the fifth auxiliary request as an immediate response to the opponent's reply instead of waiting for the board's summons.

In T.172/17 the board noted that it lay in the very nature of appeal proceedings that a board might reach a different conclusion from the department of first instance on an issue under dispute. This could not be regarded as surprising for the respondent from an objective point of view. See also the cases in V.A.4.5.6h) "Board's opinion different from that of opposition division".

For further cases where the board did not accept the argument that the amendment was a reaction to its preliminary opinion, see e.g. T.1483/16, T.276/17, T.1707/16 and T.1717/17.

d) Requested amendments could already have been filed in opposition proceedings

In T.2154/19 the board considered that the amendments requested at the oral proceedings before it could already have been filed at the opposition stage after the opposition division had found the main request not allowable at the oral proceedings. According to the board, that several different claim sets would have to have been filed at that point to overcome all the different novelty attacks addressed in the opposition proceedings was by no means an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020.

e) New request filed shortly before oral proceedings to overcome objections in decision under appeal

In T.2703/16 claim 1 of the main request and auxiliary request 1, filed for the first time less than two weeks before the oral proceedings, differed from claim 1 of the claim set underlying the appealed decision and of the claim set filed with the statement of grounds of appeal in that certain limiting features had been removed, with the result that the claimed method had significantly changed. According to the board, by deleting the limitations which had been introduced during the examination proceedings and maintained until its conclusion, the appellant had essentially reset the case and thereby let the appealed decision become irrelevant. Thus, a **fresh case** had been created. The board held that if it were to admit the new requests, it would be compelled to either give a first ruling on a

significantly changed subject-matter, which would run counter to the primary purpose of second-instance proceedings, or remit the case to the department of first instance, which would clearly be contrary to procedural economy. In addition, the board did not see the COVID-19 pandemic as an exceptional circumstance in the case in hand. It also considered the prima facie allowability of claim 1 of the new requests, but saw issues under Art. 84 and 83 EPC. In view of the above, the board, exercising its discretion under Art. 13(2) RPBA 2020, decided not to admit the new requests into the appeal proceedings.

- f) Party initially addresses new objection raised in preliminary opinion only by providing arguments

In T 428/18 the appellant (applicant) argued that the amended main request, filed during the oral proceedings and attempting to overcome a new objection raised in the board's preliminary opinion, should be admitted because it had not understood the objection until the oral proceedings. However, in the board's view the objection in its communication was sufficient to inform the appellant of its concern. It was then up to the appellant to consider, at the earliest opportunity, whether it was necessary to amend the application and to carefully examine whether there was a basis for any such amendment in the application as filed. For the main request filed with its letter of reply, the appellant had chosen not to address the objection by making an amendment and instead argued that the objected-to features did in fact have a basis in the application as filed. Therefore, the board did not deem the circumstances mentioned by the appellant to be exceptional.

- g) Objections or arguments which do not go beyond the framework of the earlier discussion

In T 1317/14 the appellant filed auxiliary request 2 at the oral proceedings and argued that it was admissible under Art. 13(2) RPBA 2020 because it had not previously been aware of the argument the board raised at those proceedings that there was no support for claim 1 of auxiliary request 1. The board, however, considered that this objection had already been apparent from the summons and that there were therefore no exceptional circumstances within the meaning of Art. 13(2) RPBA 2020. It also found that, prima facie, claim 1 of auxiliary request 2 could not overcome the objection under Art. 84 EPC and the inserted amendments did not, prima facie, meet the requirements of Art. 123(2) EPC. It therefore refused to admit the request.

Likewise in T 2214/15, the board held that there were no exceptional circumstances which would justify taking a further amended claim request (auxiliary request 3) into account. Rather, the identification of problems newly introduced when the appellant attempted to solve issues discussed in the proceedings up to that point was to be seen as an ordinary development of the discussion. Contrary to the appellant's submission, in the board's opinion, the present case was a typical case, where a central objection (that of lack of support) had been among the grounds for refusal, was identified and agreed with by the board and was the central topic throughout the appeal proceedings, thus typically not warranting the opportunity to file a further auxiliary request. The board pointed out that the topics of discussion in view of auxiliary request 2 (admitted but rejected as unallowable) did not differ in substance from those identified in the summons. The amendments were

unsuccessful attempts at overcoming previously identified issues of clarity and lack of support already raised in the summons. The further objections concerning clarity raised by the board during the oral proceedings did not go beyond the framework of the previous discussions, which were defined by the underlying claim deficiencies. The board noted that if the appellant's argument that identifying newly introduced problems amounted to exceptional circumstances were correct, this would mean that the appellant would have to be given repeated opportunities to file amended claims until no new problems were introduced, which would be at odds with the primary object of the appeal proceedings of a judicial review of the impugned decision (Art. 12(2) RPBA 2020). As regards the objection under Art. 123(2) EPC, it had raised during oral proceedings against one of the amendments in auxiliary request 2, the board observed that, given the strict third level of the convergent approach implemented by Art. 13(2) RPBA 2020, identifying an amendment aimed at overcoming an objection raised in the summons as non-compliant with Art. 123(2) EPC could not be considered to be an exceptional circumstance.

In T. 1870/15 the appellant argued that the board's claim interpretation at the oral proceedings could not have been anticipated. The board, however, observed that its communication pursuant to Art. 15(1) RPBA 2020 had provided a preliminary assessment of inventive step of the claimed subject-matter over D1 as closest state of the art, which had already been thoroughly discussed in the proceedings before the examining division. The board's claim interpretation at the oral proceedings was merely a further elucidation of its inventive-step assessment which did not have any influence on the determination of the distinguishing features of the claimed subject-matter over document D1 and was entirely consistent with its previously communicated preliminary opinion on this issue. This was regarded by the board as a normal course of events during a discussion at oral proceedings.

The board in T. 2539/16 similarly found that there were no exceptional circumstances; the objection it had raised in its opinion issued with the summons did not go beyond the scope of the one raised by the appellant or the facts asserted in support of it. It had thus not raised any brand new issues but at most clarified the arguments made by the appellant on the basis of the facts already asserted

In T. 545/19 the board's reasoning given during the oral proceedings differed from the shorter one in its preliminary opinion. But the board held that, this notwithstanding, the respondent had been informed of its preliminary negative opinion on the feature in question and could therefore not have been surprised that it came to a negative finding during the oral proceedings.

h) Board's opinion different from that of opposition division

In T. 42/17 the board recalled the principles set out in the explanatory remarks on Art. 13(2) RPBA 2020 (in CA/3/19, section VI), and in particular the following: if an appellant submitted that the board had raised an objection for the first time in its communication, it had to explain precisely why this objection was new and did not fall under objections previously raised by the opposition division or the respondent. The issues in question in the case in hand had already been discussed in the first-instance

proceedings and had been referred to by the respondent (opponent) in its reply to the grounds of appeal. The appellant (patent proprietor) therefore had to expect that the board might express a provisional opinion that was different from the opposition division's opinion. The appellant did not demonstrate that the board's provisional opinion contained any objection not raised previously.

In T 752/16, in which the board's revised opinion in its second communication under Art. 15(1) RPBA 2020 had been based on objections and lines of argument already put forward by the appellant (opponent) in its statement of grounds of appeal, the board similarly held that it was irrelevant for the purposes of Art. 13(2) RPBA 2020 whether the opinion in its communication diverged from a previous position or differed from the contested decision. Parties to proceedings before the boards always had to reckon with an unfavourable preliminary opinion at any time up to announcement of the decision (confirmed in T 764/16). See also T 1187/16 and T 646/17, in which it was pointed out in this context that the very purpose of appeal proceedings is to review the contested decision.

The board in T 2610/16 likewise refused to accept the line of argument put forward by the appellant (patent proprietor) that the amendment at issue had been made in response to the communication under Art. 15(1) RPBA 2020 and that there had been no need to file it during the opposition proceedings because the patent had been maintained as granted. The board instead pointed out that the objection (included in its communication) had already been raised in the grounds for opposition and reiterated in the grounds of appeal. In these circumstances, that the position it had taken in its communication differed from the contested decision was not a cogent reason justifying an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020.

The board in T 1962/17 followed this case law (citing T 764/16 and T 2610/16). It also remarked that, in doing so, it was even sticking to the practice before the revised RPBA's entry into force on 1 January 2020 (see T 1906/17).

For further instances where the fact that, in its communication under Art. 15(1) RPBA 2020 or at the oral proceedings, the board came to a different conclusion from the opposition division was not considered an exceptional circumstance within the meaning of Art. 13(2) RPBA 2020, see e.g. T 1897/16, T 1422/17, T 1717/17, T 172/17, T 1569/17.

i) Change in board's preliminary opinion

In T 752/16 the board's revised preliminary opinion issued in a second communication under Art. 15(1) RPBA 2020 had been formed in the light of objections and lines of argument already put forward by the appellant in its statement of grounds of appeal. The board considered that it was irrelevant for the purposes of Art. 13(2) RPBA 2020 whether the preliminary opinion in its communication under Art. 15(1) RPBA 2020 diverged from a previous position or differed from the contested decision. Parties to proceedings before the boards always had to reckon with an unfavourable preliminary opinion at any time up to announcement of the decision. The board observed in this connection that the main purpose of communicating a preliminary opinion under Art. 15(1) RPBA 2020 was to